

Appeal of Wildfire Risk Score — 10 CCR §2644.9(i)

Subject property: 2485 SANTA ROSA AVE, ALTADENA, CA 91001 **Date:** 2026-08-14 **Prepared for filing via producer** (agent/broker forwarding duty, 10 CCR §2644.9(j): "the policyholder or applicant may appeal orally or in writing to the agent or broker ... who shall then forward that appeal to the insurer no later than five (5) calendar days after receiving the appeal.")

DECISION

APPEAL — Met standards (2) outweigh documented gaps (1); remaining unknowns (9) are evidence requests, not concessions.

Scorecard: 2 met · 1 not met · 9 unknown (of 12 enumerated standards).

STATUTORY BASIS AND CLOCK

This is an appeal of the wildfire risk score / classification under 10 CCR §2644.9(i) — not a nonrenewal dispute. Verbatim:

If the policyholder or applicant appeals the wildfire risk score or other wildfire risk classification, the insurer shall acknowledge receipt of the appeal in writing within ten (10) calendar days of receipt of the appeal. The insurer shall respond to the appeal in writing with a reconsideration and decision within thirty (30) calendar days after receiving the appeal.

Statutory step	Deadline
Producer forwards appeal to insurer (§2644.9(j), 5 calendar days)	2026-08-19
Insurer written acknowledgment (§2644.9(i), 10 calendar days from receipt)	2026-08-24*
Insurer written reconsideration + decision (§2644.9(i), 30 calendar days)	2026-09-13*

* Computed from packet date; statutory clocks run from the insurer's actual receipt.

SUBJECT PARCEL EXPOSURE — INDEPENDENTLY CITED FACTS

CAL FIRE's official Fire Hazard Severity Zone map (CAL FIRE OSFM LRA FHSZ (recommended), map dated 2025-03-24, all 4 rollout phases) classifies the subject parcel as **Non-Wildland** (responsibility area: LRA). The written reconsideration required by §2644.9(i) should reconcile the insurer's wildfire risk score with the State's own hazard classification of this parcel.

Modeled annual wildfire frequency at the parcel: **8.00e-6** (FEMA_NRI, confidence medium).

Fact	Value	Source	Confidence	Vintage
wildfire_annual_frequency	0	FEMA_NRI	medium	FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data)
fire_hazard_severity_zone_class	Non-Wildland	CALFIRE_FHSZ	high	CAL FIRE OSFM LRA FHSZ (recommended),

Fact	Value	Source	Confidence	Vintage
				map dated 2025-03-24, all 4 rollout phases
fire_hazard_responsibility_area	LRA	CALFIRE_FHSZ	high	CAL FIRE OSFM LRA FHSZ (recommended), map dated 2025-03-24, all 4 rollout phases
slope_degrees	4.692 degrees	USGS_3DEP_COG	medium	—
lcms_class	Trees	USFS_LCMS	medium	USFS LCMS Land_Cover CONUS v2025-11 (2025 annual), ~120 m block-mode CONUS COG
tree_canopy_pct	24 percent	USFS_NLCD_TCC	high	USFS/MRLC NLCD Tree Canopy Cover 2025 (v2025-6), CONUS COG (~120 m block-mean canopy %)
ndvi_current	0.13	COPERNICUS_S2_SR_HARMONIZED	high	S2 SR 60d window @ 2026-08-10
ndvi_change_5y	-0.022	COPERNICUS_S2_SR_HARMONIZED	medium	—
elevation	388.454 meters	USGS_3DEP_COG	medium	3DEP 1/3 arc-second seamless DEM

Broader hazard context (natural-hazard screen of the same parcel — 13 additional cited facts; wildfire is the only hazard class at issue in this appeal):

Fact	Value	Source	Confidence	Vintage
seismic_pga_2pct_50yr_g	0.915 g	USGS_NSHM	medium	USGS 2023 Conterminous U.S. NSHM (uniform-hazard ground motion maps, VS30=760 B/C; DOI 10.5066/P9GNPCOD)
seismic_design_category	D	USGS_DESIGNMAPS_ASCE7	high	ASCE 7-22 (USGS provisional)
design_wind_speed_mph	103 mph	NOAA_ASCE_WIND_VECTORS	medium	ASCE 7-22 700-yr MRI / Risk Cat II (NOAA CCo mirror, local gpkg)
tornado_annual_frequency	0	FEMA_NRI	medium	FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data)
hail_annual_frequency	0.122	FEMA_NRI	medium	FEMA National Risk Index per-tract annualized

Fact	Value	Source	Confidence	Vintage
				frequencies (local table; NOAA SPC/NCEI/Vaisala source data)
lightning_annual_flash_days	10,397 days	FEMA_NRI	medium	FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data)
landslide_susceptibility_index	8	USGS_LANDSLIDE_SUSCEPTIBILITY	medium	USGS Slope-Relief-Threshold landslide susceptibility (n10_susc, 2024)
nearest_dam_distance_m	1752.5 m	USACE_NID	medium	USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer)
nearest_dam_hazard_potential	High	USACE_NID	medium	USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer)
high_hazard_dams_within_10km	11	USACE_NID	medium	USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer)
in_karst_area	false	USGS_KARST	medium	USGS National Karst Map OFR 2014-1156 (local GeoPackage reduction, simplified ~90 m)
soil_shrink_swell_class	null	NRCS_gNATSGO	medium	—
within_floodplain_polygon	false	FEMA_NFHL	high	o6037C_STUDY2

Location resolution: rooftop-accuracy geocode (parcel-grade) of "2485 Santa Rosa Ave, Altadena, CA 91001" via geocodio.

Evidence in flight: this agent has requested additional fields from the data provider — nearest_fire_perimeter_distance_m (CAL FIRE FRAP); most_recent_burn_year; incident_name (request fr_43cf7d4595af48c38390a83589b22c80, filed 2026-08-10, provider ETA 2026-08-11). This packet will be supplemented when the fields are delivered.

ASSESSMENT AGAINST THE ENUMERATED MITIGATION STANDARDS (10 CCR §2644.9(D)(1))

The argument of this packet is the enumerated Safer-from-Wildfires standards the regulation requires rating plans to reflect. Survivor comparables (below) corroborate; they are not the argument.

Std	Enumerated standard (verbatim)	Status	Evidence
A1 (10 CCR §2644.9(d)(1) (A))	Fire Risk Reduction Community listed by the Board of Forestry pursuant to Public Resources Code section 4290.1	unknown	No evidence available yet.
A2 (10 CCR §2644.9(d)(1) (A))	Firewise USA Site in Good Standing	unknown	No evidence available yet.
B1a (10 CCR §2644.9(d)(1) (B)1.)	Clearing of vegetation and debris from under decks	unknown	No evidence available yet.
B1b (10 CCR §2644.9(d)(1) (B)1.)	Clearing of vegetation, debris, mulch, stored combustible materials, and any and all movable combustible objects, from the area within five (5) feet	unknown	No evidence available yet.
B1c (10 CCR §2644.9(d)(1) (B)1.)	Incorporation of only noncombustible materials into that portion of any improvements situated within five (5) feet	unknown	No evidence available yet.
B1d (10 CCR §2644.9(d)(1) (B)1.)	Removal or absence of combustible structures from the area within thirty (30) feet	unknown	No evidence available yet.
B1e (10 CCR §2644.9(d)(1) (B)1.)	Whether the property complies with Section 4291 of the Public Resources Code, and any applicable local ordinances	unknown	No evidence available yet.
B2a (10 CCR §2644.9(d)(1) (B)2.)	Class-A Fire Rated Roof	unknown	CAL FIRE inspector recorded roof material: Asphalt. Material does not establish Class-A rating — status unknown pending documentation.
B2b (10 CCR §2644.9(d)(1) (B)2.)	Enclosed Eaves	MET	CAL FIRE inspector recorded eaves: Enclosed.
B2c (10 CCR §2644.9(d)(1) (B)2.)	Fire-Resistant Vents	MET	CAL FIRE inspector recorded vent screening: Mesh Screen <= 1/8".
B2d (10 CCR §2644.9(d)(1) (B)2.)	Multipane windows, including dual pane windows, or functional shutters	NOT MET	CAL FIRE inspector recorded window panes: Single Pane.
B2e (10 CCR §2644.9(d)(1) (B)2.)	At least six (6) inches of noncombustible vertical clearance at the bottom	unknown	No evidence available yet.

DEMAND UNDER §2644.9(K)(B)

We demand, for each mitigation measure below, the disclosure the regulation requires, verbatim:

The amount of premium reduction the policyholder or applicant would realize as a result of performing each such measure under the insurer's rating plan that is in effect at the time.

#	Mitigation measure (enumerated standard)	Eaton survival delta (SFR, Unknown excluded)	Disclosure demanded
1	Multipane windows, including dual pane windows, or functional shutters (B2d)	+15 pp	Dollar premium reduction for completing this measure, itemized in the §2644.9(i) written reconsideration

CORROBORATION: CAL FIRE DINS SURVIVOR COMPARABLES (EATON FIRE)

Subject property's own CAL FIRE damage-inspection record: damage="No Damage", roof=Asphalt, vents=Mesh Screen <= 1/8", eaves=Enclosed, windows=Single Pane, siding=Wood, built 1948, APN 5840010005.

Survival by ROOFCONSTRUCTION (No Damage vs Destroyed (>50%)):

Category	No Damage	Destroyed	Survival
Combustible	1	0	100%
Other	16	4	80%
Concrete	125	48	72%
Tile	1069	620	63%
Asphalt	3803	4410	46%
Metal	34	53	39%
Wood	9	31	23%
Non Combustible	0	1	0%
Unknown (excluded)	25	838	—

Survival by VENTSCREEN (No Damage vs Destroyed (>50%)):

Category	No Damage	Destroyed	Survival
Unscreened	206	26	89%
No Vents	912	153	86%
Mesh Screen <= 1/8"	795	291	73%
Mesh Screen > 1/8"	3016	2859	51%
Unknown (excluded)	153	2676	—

Survival by EAVES (No Damage vs Destroyed (>50%)):

Category	No Damage	Destroyed	Survival
Combustible	2	0	100%
Enclosed	1206	163	88%
No Eaves	391	109	78%
Unenclosed	3468	1383	71%
Unknown (excluded)	15	4350	—

Survival by WINDOWPANE (No Damage vs Destroyed (>50%)):

Category	No Damage	Destroyed	Survival
Multi Pane	2683	950	74%
Single Pane	2361	1661	59%
No Windows	18	30	38%
Asphalt	0	1	0%
Unknown (excluded)	20	3363	—

Survival by EXTERIORSIDING (No Damage vs Destroyed (>50%)):

Category	No Damage	Destroyed	Survival
Vinyl	53	12	82%
Other	25	7	78%
Wood	1111	350	76%
Metal	8	6	57%
Stucco Brick Cement	3878	5386	42%
Unknown (excluded)	7	244	—

Methodology disclosure. Comparisons are restricted to single-family residences (roughly 30% of Eaton DINS records are utility/miscellaneous structures — sheds, garages — which distort pooled survival rates) and exclude structures whose feature value is "Unknown". Unknowns concentrate among destroyed structures because inspectors cannot assess features that burned; including them would overstate every survival effect (survivorship artifact). Counts of excluded records are disclosed per table above.

PROVENANCE APPENDIX

- Mireye parcel facts: mode= fixture (24 fields via POST /v1/fetch, preset wildfire_underwrite, fetched 2026-08-10T23:52:15.848858+00:00)
- [parcel] seismic_pga_2pct_50yr_g = 0.9150000214576721 g — USGS_NSHM <https://www.sciencebase.gov/catalog/item/644af897d34e45f6ddcd13b3> (confidence: medium) fetched 2026-08-10T23:52:16.035069+00:00 vintage USGS 2023 Conterminous U.S. NSHM (uniform-hazard ground motion maps, VS30=760 B/C; DOI 10.5066/P9GNPCOD) — note: PGA (g) with 2% probability of exceedance in 50 yr (~2475-yr return), site class BC (VS30=760); sampled from the bootstrapped USGS 2023 NSHM uniform-hazard CONUS COG
- [parcel] seismic_design_category = "D" — USGS_DESIGNMAPS_ASCE7 <https://earthquake.usgs.gov/ws/designmaps/> (confidence: high) fetched 2026-08-10T23:52:17.022712+00:00 vintage ASCE 7-22 (USGS provisional) — note: siteClass=D riskCategory=II (assumed defaults; Ss=2.18 S1=0.73 SDS=1.5)
- [parcel] design_wind_speed_mph = 103 mph — NOAA_ASCE_WIND_VECTORS https://services2.arcgis.com/C8EMgrsFcRFL6LrL/arcgis/rest/services/ASCE_Wind_Vectors/FeatureServer (confidence: medium) fetched 2026-08-10T23:52:16.036574+00:00 vintage ASCE 7-22 700-yr MRI / Risk Cat II (NOAA CCo mirror, local gpkg) — note: banded 3-second-gust basic design wind speed (mph), Exposure C (point-in-polygon; local gpkg mirror)
- [parcel] wildfire_annual_frequency = 0.00000799999979802 — FEMA_NRI <https://hazards.fema.gov/nri/> (confidence: medium) fetched 2026-08-10T23:52:16.036794+00:00 vintage FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data) — note: annualized frequency for Census tract 06037461100 — events/yr
- [parcel] tornado_annual_frequency = 0.00009719505932414187 — FEMA_NRI <https://hazards.fema.gov/nri/> (confidence: medium) fetched 2026-08-10T23:52:16.036813+00:00 vintage FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data) — note: annualized frequency for Census tract 06037461100 — events/yr
- [parcel] hail_annual_frequency = 0.12207432140477316 — FEMA_NRI <https://hazards.fema.gov/nri/> (confidence: medium) fetched 2026-08-10T23:52:16.036845+00:00 vintage FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data) — note: annualized frequency for Census tract 06037461100 — events/yr

- [parcel] lightning_annual_flash_days = 10.397461000000002 days — FEMA_NRI <https://hazards.fema.gov/nri/> (confidence: medium) fetched 2026-08-10T23:52:16.036855+00:00 vintage FEMA National Risk Index per-tract annualized frequencies (local table; NOAA SPC/NCEI/Vaisala source data) — note: annualized frequency for Census tract 06037461100 — lightning days/yr
- [parcel] landslide_susceptibility_index = 8 — USGS_LANDSLIDE_SUSCEPTIBILITY <https://www.sciencebase.gov/catalog/item/65ccea5bd34ef4b119cb3bac> (confidence: medium) fetched 2026-08-10T23:52:15.996396+00:00 vintage USGS Slope-Relief-Threshold landslide susceptibility (n10_susc, 2024) — note: sampled from the bootstrapped n10_susc CONUS COG at the point
- [parcel] nearest_dam_distance_m = 1752.5 m — USACE_NID <https://nid.sec.usace.army.mil/> (confidence: medium) fetched 2026-08-10T23:52:16.035832+00:00 vintage USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer) — note: straight-line distance to the nearest inventoried dam — a screening signal, not inundation exposure
- [parcel] nearest_dam_hazard_potential = "High" — USACE_NID <https://nid.sec.usace.army.mil/> (confidence: medium) fetched 2026-08-10T23:52:16.035722+00:00 vintage USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer) — note: USACE consequence-of-failure class of the nearest dam — not a condition or failure-probability rating
- [parcel] high_hazard_dams_within_10km = 11 — USACE_NID <https://nid.sec.usace.army.mil/> (confidence: medium) fetched 2026-08-10T23:52:16.035857+00:00 vintage USACE National Inventory of Dams (local GeoPackage mirror of the Esri-hosted NID_v1 FeatureServer) — note: count of High hazard-potential NID dams in the 10 km band; a floor — sub-inventory-threshold dams are absent
- [parcel] in_karst_area = false — USGS_KARST <https://doi.org/10.3133/ofr20141156> (confidence: medium) fetched 2026-08-10T23:52:16.036119+00:00 vintage USGS National Karst Map OFR 2014-1156 (local GeoPackage reduction, simplified ~90 m)
- [parcel] karst_type = null — USGS_KARST <https://doi.org/10.3133/ofr20141156> (confidence: medium) fetched 2026-08-10T23:52:16.036200+00:00 vintage USGS National Karst Map OFR 2014-1156 (local GeoPackage reduction, simplified ~90 m) — note: in_karst_area is False (no mapped karst or pseudokarst unit at the point)
- [parcel] karst_exposure_class = null — USGS_KARST <https://doi.org/10.3133/ofr20141156> (confidence: medium) fetched 2026-08-10T23:52:16.036211+00:00 vintage USGS National Karst Map OFR 2014-1156 (local GeoPackage reduction, simplified ~90 m) — note: in_karst_area is False (no mapped karst or pseudokarst unit at the point)
- [parcel] fire_hazard_severity_zone_class = "Non-Wildland" — CALFIRE_FHSZ https://services1.arcgis.com/jUJYIo9tSA7EHvfZ/arcgis/rest/services/FHSALRA25_v1_All/FeatureServer/0 (confidence: high) fetched 2026-08-10T23:17:10.600988+00:00 vintage CAL FIRE OSFM LRA FHSZ (recommended), map dated 2025-03-24, all 4 rollout phases — note: CAL FIRE LRA Fire Hazard Severity Zone at the point (FHSZ code -3); read with fire_hazard_responsibility_area, which decides what the class legally means.
- [parcel] fire_hazard_responsibility_area = "LRA" — CALFIRE_FHSZ https://services1.arcgis.com/jUJYIo9tSA7EHvfZ/arcgis/rest/services/FHSALRA25_v1_All/FeatureServer/0 (confidence: high) fetched 2026-08-10T23:17:10.600907+00:00 vintage CAL FIRE OSFM LRA FHSZ (recommended), map dated 2025-03-24, all 4 rollout phases — note: responsibility area from the SRA attribute of the same CAL FIRE LRA polygon that carries the FHSZ class.
- [parcel] soil_shrink_swell_class = null — NRCS_gNATSGO https://storage.googleapis.com/mireye-earth-data/soils/gnatsgo_mukey_conus_fy2025.tif

(confidence: medium) fetched 2026-08-10T23:52:16.860604+00:00 — note: binned from dominant-component shallowest-horizon lep_r

- [parcel] within_floodplain_polygon = false — FEMA_NFHL
<https://hazards.fema.gov/arcgis/rest/services/public/NFHL/MapServer/28> (confidence: high) fetched 2026-08-10T23:52:15.925092+00:00 vintage 06037C_STUDY2 — note: FEMA NFHL Flood Hazard Zones intersect, but not an SFHA: Zone X; AREA OF MINIMAL FLOOD HAZARD; SFHA_TF=F; FLD_AR_ID=06037C_5417; SOURCE_CIT=06037C_STUDY2.
- [parcel] slope_degrees = 4.691714763641357 degrees — USGS_3DEP_COG
<https://www.usgs.gov/3d-elevation-program> (confidence: medium) fetched 2026-08-10T23:17:10.688044+00:00
- [parcel] lcms_class = "Trees" — USFS_LCMS
<https://data.fs.usda.gov/geodata/rastergateway/LCMS/> (confidence: medium) fetched 2026-08-10T22:18:34.130650+00:00 vintage USFS LCMS Land_Cover CONUS v2025-11 (2025 annual), ~120 m block-mode CONUS COG — note: LCMS Land_Cover class sampled from the bootstrapped ~120 m block-mode CONUS COG
- [parcel] tree_canopy_pct = 24 percent — USFS_NLCD_TCC
<https://data.fs.usda.gov/geodata/rastergateway/treecanopycover/> (confidence: high) fetched 2026-08-10T22:18:34.137225+00:00 vintage USFS/MRLC NLCD Tree Canopy Cover 2025 (v2025-6), CONUS COG (~120 m block-mean canopy %) — note: tree canopy cover (%) sampled from the bootstrapped USFS/NLCD CONUS COG
- [parcel] ndvi_current = 0.1298123449087143 — COPENICUS_S2_SR_HARMONIZED
https://developers.google.com/earth-engine/datasets/catalog/COPENICUS_S2_SR_HARMONIZED (confidence: high) fetched 2026-08-10T22:18:40.134632+00:00 vintage S2 SR 60d window @ 2026-08-10
- [parcel] ndvi_change_5y = -0.02202633023262024 — COPENICUS_S2_SR_HARMONIZED
https://developers.google.com/earth-engine/datasets/catalog/COPENICUS_S2_SR_HARMONIZED (confidence: medium) fetched 2026-08-10T22:18:40.134774+00:00
- [parcel] elevation = 388.45416259765625 meters — USGS_3DEP_COG
<https://www.usgs.gov/3d-elevation-program> (confidence: medium) fetched 2026-08-10T23:17:10.687484+00:00 vintage 3DEP 1/3 arc-second seamless DEM
- [B2a] ROOFCONSTRUCTION = "Asphalt" — CAL FIRE DINS damage-inspection record for the subject property (POSTFIRE_MASTER_DATA_SHARE, Eaton Fire)
https://services1.arcgis.com/jUJYIo9tSA7EHvfZ/arcgis/rest/services/POSTFIRE_MASTER_DATA_SHARE/F
- [B2a] Corroboration: Eaton Fire survival by ROOFCONSTRUCTION (No Damage vs Destroyed, 'Unknown' excluded): Other 80%, Concrete 72%, Tile 63%, Asphalt 46%, Metal 39%, Wood 23%.
- [B2b] EAVES = "Enclosed" — CAL FIRE DINS damage-inspection record for the subject property (POSTFIRE_MASTER_DATA_SHARE, Eaton Fire)
https://services1.arcgis.com/jUJYIo9tSA7EHvfZ/arcgis/rest/services/POSTFIRE_MASTER_DATA_SHARE/F
- [B2b] Corroboration: Eaton Fire survival by EAVES (No Damage vs Destroyed, 'Unknown' excluded): Enclosed 88%, No Eaves 78%, Unenclosed 71% — standard-conforming category: Enclosed.
- [B2c] VENTSCREEN = "Mesh Screen <= 1/8"" — CAL FIRE DINS damage-inspection record for the subject property (POSTFIRE_MASTER_DATA_SHARE, Eaton Fire)
https://services1.arcgis.com/jUJYIo9tSA7EHvfZ/arcgis/rest/services/POSTFIRE_MASTER_DATA_SHARE/F
- [B2c] Corroboration: Eaton Fire survival by VENTSCREEN (No Damage vs Destroyed, 'Unknown' excluded): Unscreened 89%, No Vents 86%, Mesh Screen <= 1/8" 73%, Mesh Screen

> 1/8" 51% — standard-conforming category: Mesh Screen <= 1/8".

- [B2d] WINDOWPANE = "Single Pane" — CAL FIRE DINS damage-inspection record for the subject property (POSTFIRE_MASTER_DATA_SHARE, Eaton Fire)
https://services1.arcgis.com/jUJYI09tSA7EHvfZ/arcgis/rest/services/POSTFIRE_MASTER_DATA_SHARE/F
- [B2d] Corroboration: Eaton Fire survival by WINDOWPANE (No Damage vs Destroyed, 'Unknown' excluded): Multi Pane 74%, Single Pane 59%, No Windows 38% — standard-conforming category: Multi Pane.
- Regulation text: 10 CCR §2644.9 via Cornell LII
<https://www.law.cornell.edu/regulations/california/10-CCR-2644.9>, fetched 2026-08-14.
- DINS: CAL FIRE POSTFIRE_MASTER_DATA_SHARE FeatureServer, queried live 2026-08-14.

Verification statement: every regulation quotation in this packet was fetched from the primary source on the date shown, not reproduced from memory; every data fact carries its source, source URL, retrieval timestamp, and dataset vintage; every survivor comparison discloses its conditioning. Anything this packet could not verify is marked unknown rather than asserted.